

HEADNOTE

“1. An ambiguity arising when reading Article 62 UPCA and Rules 220.1(c) and 224.1(b) RoP together, in combination with incorrect, or at least incomplete, information provided by the Court of First Instance, has led the appellant to believe that a two months' time period applied for an appeal of an order. The principle of the protection of legitimate expectations requires that the appellant under the exceptional circumstances of this case is allowed to rely on the information provided by the Court of First Instance that the applicable time period for lodging the Statement of appeal was two months, when in fact it was 15 days.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional
measures

PATENT
EP 3 295 663

Digitally overlaying an image with
another image

KEYWORDS

Time period for lodging a Statement of app...

Article 62 Provisional and protective measures

SUMMARY

The Court of Appeal in Luxembourg ruled on an application for provisional measures. The patent at issue relates to digitally overlaying an image with another image. According to the headnotes of the decision, when conflicting information about procedural deadlines arises from unclear rules and incomplete guidance from a lower court, the principle of protecting legitimate expectations may allow a party to rely on the incorrect deadline they were given, provided the circumstances are truly exceptional.